CARLA BENTON MEDIATION
Hon. Carla Benton (Ret.) · Mediation & Neutral Evaluation
250 Commerce St, Suite 410, Riverton · (555) 010-3460 Case ref. CBM-27-0042

MEDIATED SETTLEMENT TERM SHEET

John Doe v. Robert Smith · State Court of Riverton County · Civil Action No. 26-CV-04417
Mediation session of Thursday, March 18, 2027

The undersigned parties, their counsel and the insurer for Defendant, having participated in court-ordered mediation before Hon. Carla Benton (Ret.), agree to settle the claims described below on the following terms. This term sheet is a binding and enforceable agreement; the parties will sign formal documents consistent with it, but its enforceability does not depend on them.

1. **Payment.** Keystone Mutual Insurance, on behalf of Defendant Robert Smith, will pay **$10,000.00** — the full per-person bodily injury limit of policy KMI-PA-7731045 (claim KM-26-440871) — by check payable to "LSH Law Group IOLTA Trust Account f/b/o John Doe", delivered to LSH Law Group within twenty-one (21) days after Keystone receives the signed release described in paragraph 2 and a Form W-9.
2. **Limited release.** Plaintiff John Doe will sign a **limited release** releasing **only Robert Smith and Keystone Mutual Insurance** from claims for bodily injury arising from the collision of February 6, 2026. The release will not release, and will **expressly preserve, all of Plaintiff's uninsured/underinsured motorist (UM/UIM) claims**, including his claims under Harbor Point Insurance policy HPA-4402917 (claim HP-26-7741) and Cardinal State Mutual policy CSM-AU-5580213 (claim CS-26-20355), and will not release any other person, firm, corporation or insurer. The release will contain no confidentiality clause binding on Plaintiff as against his UM carriers or lienholders.
3. **Affidavit of no other insurance.** With the payment, Robert Smith will deliver his sworn affidavit that, on February 6, 2026, he had no other liability insurance (including any umbrella or excess policy) and was not acting in the course of any employment or business.
4. **Dismissal.** Within ten (10) days after the settlement funds clear, Plaintiff will file a stipulation dismissing with prejudice his claims against Robert Smith for bodily injury. Each side bears its own attorney's fees and costs.
5. **Property damage excluded.** Plaintiff's property-damage claims (loss of use and diminished value of his 2019 Honda Civic; Keystone PD claim KM-26-440871-PD) are **not** part of this settlement and are not released. Counsel will address them separately.
6. **UM consents.** Harbor Point Insurance and Cardinal State Mutual have each consented in writing to this settlement and waived subrogation against Robert Smith. Their written consents, received during the session, are attached as **Exhibits A and B**.
7. **Liens.** Plaintiff and his counsel will satisfy from the settlement proceeds any valid lien or reimbursement claim of a health plan or medical provider arising from treatment paid for or rendered on account of the collision.
8. **Report to the Court.** The mediator will report to the Court that the claims against Robert Smith have settled as stated here.

John Doe
John Doe, Plaintiff

Robert Smith
Robert Smith, Defendant

Elijah Thone
Elijah Thone, LSH Law Group, Counsel for Plaintiff

Grant Mercer
Grant Mercer, Mercer & Hale LLP, Counsel for Defendant

Greg Holloway
Greg Holloway, Claims Supervisor, Keystone Mutual Insurance (with full authority)

Carla Benton
Hon. Carla Benton (Ret.), Mediator (witness to signatures)

Signed at 250 Commerce St, Suite 410, Riverton, on March 18, 2027, at 4:12 p.m. Each signatory received a copy.

EXHIBIT A

HARBOR POINT INSURANCE

Auto Claims · 77 Harbor Point Blvd, Riverton

Claim HP-26-7741
Policy HPA-4402917

March 18, 2027 · **VIA EMAIL** (to Elijah Thone, Esq., LSH Law Group, at the mediation)

Re: Consent to Settle — John Doe · Insured: Kevin Alvarez · Date of loss 02/06/2026 · Tortfeasor Robert Smith / Keystone Mutual KM-26-440871

Dear Mr. Thone:

Harbor Point Insurance has been advised that Keystone Mutual Insurance has tendered its $10,000.00 per-person bodily injury limit on behalf of Robert Smith in settlement of your client's bodily injury claim, in exchange for a limited release of Robert Smith and Keystone Mutual only.

Harbor Point **consents** to that settlement. Harbor Point will not substitute its own payment for the tendered amount, and **waives its right of subrogation against Robert Smith** for any UM/UIM payment it may make on this claim. This consent does not waive any other term or condition of the policy, and Mr. Doe's UM/UIM claim under policy HPA-4402917 remains open.

Sincerely,

Marcus Bell

Marcus Bell, Senior Claims Representative, UM/UIM · Harbor Point Insurance

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EXHIBIT B

CARDINAL STATE MUTUAL

Personal Auto Claims · 1200 Cardinal Way, Millbrook

Claim CS-26-20355
Policy CSM-AU-5580213

March 18, 2027 · **VIA EMAIL** (to Elijah Thone, Esq., LSH Law Group, at the mediation)

Re: Consent to Settle — John Doe · Insured: Margaret Doe · Date of loss 02/06/2026 · Tortfeasor Robert Smith / Keystone Mutual KM-26-440871

Dear Mr. Thone:

Cardinal State Mutual **consents** to your client's settlement of his bodily injury claim against Robert Smith for Keystone Mutual's $10,000.00 per-person limit, in exchange for a limited release of Robert Smith and Keystone Mutual only. Cardinal State will not substitute its own payment and **waives subrogation against Robert Smith**. All other policy terms and conditions are reserved, and Mr. Doe's UM claim under policy CSM-AU-5580213 remains open.

Sincerely,

Teresa Okafor

Teresa Okafor, Claims Specialist · Cardinal State Mutual